

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Igor Volynets	Team: Team # 6	CCRB Case #: 200807091	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 05/17/2008 4:35 PM	Location of Incident: Avenue I and East 15th Street	18 Mo. SOL 11/17/2009	Precinct: 70		
Date/Time CV Reported Mon, 05/19/2008 4:42 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 05/19/2008 4:42 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Szczecinski	01952	940784	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christophe Donohue	09014	943182	070 PCT
2. SGT Walter Roberts	03340	923047	070 PCT
3. SGT Edmund Small	01474	920846	070 PCT
4. POM Howard Slade	01164	940744	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Szczecinski	Discourtesy: PO Michael Szczecinski spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . POM Michael Szczecinski	Abuse: PO Michael Szczecinski threatened § 87(2)(b) with the use of force.	B . Exonerated
C . POM Michael Szczecinski	Force: PO Michael Szczecinski used physical force against § 87(2)(b)	C . Exonerated
D . POM Michael Szczecinski	Abuse: PO Michael Szczecinski did not obtain medical treatment for § 87(2)(b)	D . Unfounded

Synopsis

On May 17, 2008 at 4:35 PM, § 87(2)(b) was driving on Avenue I and East 15th Street in Brooklyn when she was stopped by PO Michael Szczecinski, who informed her that she ran a stop sign. As § 87(2)(b) attempted to dispute the summons with him, PO Szczecinski allegedly told her, “Are you a fucking idiot? If someone’s pulling you over that means they saw you” (Allegation A). While § 87(2)(b) was in her vehicle speaking with a 911 operator on her cell phone, PO Szczecinski approached the driver’s seat and told her, “I’m gonna dig you out of the car if you don’t come out (Allegation B). Several minutes later, § 87(2)(b), § 87(2)(b)’s husband, arrived on the scene in another vehicle and asked the officers why they were issuing § 87(2)(b) a summons and why they would not give her license back to her. § 87(2)(b) was placed under arrest for obstructing governmental administration. PO Szczecinski walked up to § 87(2)(b) and placed her under arrest as well. Upon placing her in handcuffs, the officer allegedly kicked the back of § 87(2)(b)’s legs to get her to walk faster and hit § 87(2)(b) on the head with his police cap to force her inside the police car (Allegation C). In the 70th Precinct stationhouse, § 87(2)(b) allegedly asked PO Szczecinski for medical attention and he refused to assist her, insisting that she would have to wait until she was taken to Central Booking (Allegation D).

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) Medical Records Statement (Encl. 21a-l)

§ 87(2)(b) § 87(2)(b)
§ 87(2)(a) PBH § 87(6)

§ 87(2)(b) CCRB Statement (Encl. 6a-f)

§ 87(2)(b) (§ 87(2)(b) African-American female, § 87(2)(b), with black hair and brown eyes), contacted the CCRB via telephone on May 19, 2008. She was interviewed at the CCRB on June 2, 2008. § 87(2)(g)

On May 17, 2008 at about 4:35 PM, near Avenue I and East 15th Street in Brooklyn, § 87(2)(b) was driving her vehicle (2007 4-door gold Toyota Camry) and noticed an RMP standing on the road and saw that PO1 had stopped a Jewish male driving a gray minivan further up the block. § 87(2)(b) was driving very slowly because there is a dead-end down the block. There were no other cars on the road at this time. § 87(2)(b) drove a distance of less than one foot past the minivan towards the traffic light at the end of the corner. When she reached the corner, § 87(2)(b) heard, “Gold Camry, please pull over.” It sounded as if the order was issued via the PA system. § 87(2)(b) was the only woman driving a Camry, so she complied and stopped right at the intersection of Avenue I and East 14th Street. PO1 (Caucasian male, 6’2”, 190-200 lbs., crew-cut reddish hair, wore sunglasses, in uniform, identified by name and shield number as PO Michael Szczecinski) approached § 87(2)(b) asked for her license, registration, and insurance card. § 87(2)(b) provided the documents and PO Szczecinski went back to the RMP. § 87(2)(b) waited for about twenty minutes, got out of her car, approached the RMP, and asked why she was being stopped. PO2 (Caucasian male, 6’1”, black hair, 170 lbs., slim build, in uniform, identified through the investigation as PO Christopher Donohue) sat in the driver’s seat. PO Szczecinski, sitting in the passenger seat, told her that he would be issuing her a summons for failing to yield a stop sign and not coming to a complete stop. § 87(2)(b) told PO Szczecinski that she always stops at this intersection because she is familiar with the area.

§ 87(2)(b) also told PO Szczecinski, “How would you know if I stopped when your whole body was in the other car and you were issuing a ticket to the other driver?” PO Szczecinski got angry and screamed, “What do you mean? You’re calling me a liar?” PO Szczecinski also said, “Are you a fucking idiot? If someone’s pulling you over that means they saw you.”

§ 87(2)(b) continued to insist that the officers did not see her because they were busy dealing with the other driver. § 87(2)(b) admitted that she was speaking in a loud tone of voice and was shouting because the officer was shouting at her. PO Szczecinski returned the registration and insurance to § 87(2)(b) but held on to her identification without providing a reason. § 87(2)(b) went back to her vehicle, called 911 on her cell phone, and asked if an officer can refuse to return her identification to her. The operator said that the officer had to give back everything he took from her. At this point, PO Szczecinski walked up to her and started yelling at her, telling her to get out of the car. § 87(2)(b) refused to get out and told PO Szczecinski that she was on the phone with 911 and was entitled to get her ID back. PO Szczecinski, acting “like a vigilante,” ordered § 87(2)(b) to get off the phone and told her, “I’m gonna dig you out of the car if you don’t come out.” PO Szczecinski repeated this several times and tried to open the car door as § 87(2)(b) locked it. The operator heard the officer make this comment. § 87(2)(b) refused to exit the vehicle, telling PO Szczecinski that there was no reason for her to get out. PO Szczecinski then went back to the RMP. The operator said that a unit would respond to the location as soon as possible and § 87(2)(b) hung up the phone.

About three minutes later, § 87(2)(b) the father of § 87(2)(b) s children, drove up to the scene because § 87(2)(b) had called him about the incident right before calling 911. § 87(2)(b) parked directly behind the RMP. § 87(2)(b) got out of her vehicle and showed § 87(2)(b) the exact spot where she was stopped and where the other driver was stopped. § 87(2)(b) subsequently approached the RMP and tapped on the passenger side window of the RMP, with § 87(2)(b) standing right next to him, and told PO Szczecinski, “Officer, can you give her back her ID?” PO Szczecinski and PO Donohue ignored him. After two minutes, PO Szczecinski told § 87(2)(b) “Get out of here. Stop interfering with a police investigation.” PO Szczecinski asked who § 87(2)(b) was. § 87(2)(b) explained that § 87(2)(b) is the mother of his children and that he wanted to find out what was happening. PO Szczecinski told § 87(2)(b) “I don’t have to tell you anything.” § 87(2)(b) dialed 911 from his mobile phone at this time. PO Szczecinski came out of the RMP and placed § 87(2)(b) under arrest. § 87(2)(b) did not resist being handcuffed and did not make any movements with his arms. PO Szczecinski looked and § 87(2)(b) and said, “You see? I gave you a warning and you didn’t listen.” PO Szczecinski then proceeded to place § 87(2)(b) under arrest as well. § 87(2)(b) still held the cell phone in her hand and told PO Szczecinski that she recently had a surgery on her legs. She warned PO Szczecinski not to push her and that she would need to take her time to walk. PO Szczecinski told her, “Just go! Just go!” and began pushing and hitting her left upper thigh and knee area with his hand multiple times in an attempt to get her to go to the RMP sooner. A crowd of twenty to twenty-five Jewish parents and children formed, with two or three individuals taking pictures with a camera, and PO Szczecinski told § 87(2)(b) “Look, you’re causing a scene.” As § 87(2)(b) was slowly walking towards the RMP door, PO Szczecinski yelled out, “Get in the car. Get in the car. You’re taking too long.” § 87(2)(b) repeated that she had a surgery on her legs and PO Szczecinski replied, “I don’t care.” PO Szczecinski started hitting and poking § 87(2)(b) on the side of her head. § 87(2)(b) told PO Szczecinski, “Please don’t hit me. I will not get in this car today if you keep hitting me and I just told you I had surgery.” At this point, PO Szczecinski took his police hat off and proceeded to hit § 87(2)(b) on the head with the sort cloth part of the hat three or four times in an attempt to get her inside the RMP.

A second RMP arrived several minutes after § 87(2)(b) sat down in the squad car. PO Szczecinski, PO Donohue, PO3 (African-American male, slim build, 6’2”, low-Caesar black hair, dark brown eyes, may have been a sergeant because of stripes on his uniform, identified as Sgt. Edmund Small), and PO4 (African-American male, low-Caesar black hair, 6’1”, 170 lbs., in uniform, 24-25 years old, identified as PO Howard Slade) talked for about twenty minutes. Sgt. Small spoke to § 87(2)(b) explaining why she was under arrest.

PO Szczecinski accused § 87(2)(b) of scratching the officers with her fingernails. § 87(2)(b) said that she was wearing tips (fake fingernails) and they were not sharp enough to scratch anyone.

In the 70th Precinct, § 87(2)(b)'s ankles began to swell up and she asked PO Szczecinski for medical attention, indicating that she needed to go to the hospital. PO Szczecinski told her that she had to wait to be transported to Central Booking. She stated that she did not seek any medical attention in Central Booking.

As she was being processed in the precinct, PO Szczecinski said that § 87(2)(b) should have told him that she is employed at the § 87(2)(b) and that the incident would not have escalated the way it had. § 87(2)(b) told PO Szczecinski, "I don't have to tell you that for you to treat me as a human being." PO Szczecinski also told § 87(2)(b) that if she hadn't called 911, she wouldn't be here. She was arrested § 87(2)(b)

§ 87(2)(b) went to § 87(2)(b) on § 87(2)(b) at about 5 PM, right after she was released from Central Booking. § 87(2)(b) explained that she underwent surgery to remove fluid from her kneecaps approximately two months before the incident date. § 87(2)(b) was told that it would take six months for her knees to fully recover.

Results of Investigation

§ 87(2)(b) CCRB Witness Statement (Encl. 7a-e)

§ 87(2)(b) § 87(2)(b) African-American male, § 87(2)(b), with black hair and brown eyes) was interviewed at the CCRB on June 2, 2008.

On May 17, 2008 at about 4:30 PM, § 87(2)(b) was home when he received a call from § 87(2)(b) the mother of his children. § 87(2)(b) sounded agitated and told him that she was being pulled over by several officers for a routine stop sign violation. § 87(2)(b) heard an officer scream at § 87(2)(b) to get off the phone. § 87(2)(b) told § 87(2)(b) that she was stopped at Avenue I and East 14th Street in Brooklyn. § 87(2)(b) got in his vehicle (2003 black 4-door BMW X-5 SUV) and drove up to the location, double-parking directly behind an RMP. § 87(2)(b) walked over to § 87(2)(b) who stood by her car § 87(2)(b) could not recall if she was inside or outside her car), and asked her what happened. § 87(2)(b) told him that she received a summons for a routine violation and that the officer who issued her the ticket was dealing with another vehicle when she turned on Avenue I. § 87(2)(b) additionally told § 87(2)(b) that the officer still had her driver's license and was not giving it back. § 87(2)(b) proceeded to walk over to the RMP and tried to speak to the officers. PO1 (Caucasian male, blond hair, 5'11", 180-190 lbs., in uniform, wore dark glasses, sat on passenger side, identified as PO Szczecinski), rolled up his window when § 87(2)(b) approached. § 87(2)(b) knocked on the window and PO Szczecinski ignored him. § 87(2)(b) walked around to the driver's side of the RMP and PO2 (Caucasian male, thin frame, 5'11", in uniform, identified as PO Donohue) also rolled his window up without saying anything. § 87(2)(b) walked back to the passenger side, at which point PO Szczecinski slightly rolled his window down and told him, "Get out of here." § 87(2)(b) told PO Szczecinski, "I want to know why you're holding her ID after you issued her the summons." § 87(2)(b) displayed a uniformly calm tone of voice during his interaction with the officers. PO Szczecinski asked § 87(2)(b) who he was and § 87(2)(b) replied that he was § 87(2)(b)'s husband. PO Szczecinski told § 87(2)(b) "Get out of here or I'm gonna arrest you." PO Szczecinski displayed an agitated high-pitched tone of voice. § 87(2)(b) repeated that he wanted to know why they were holding on to § 87(2)(b)'s identification. PO Szczecinski said, "Forget this," got out of the car, and proceeded to rear-cuff § 87(2)(b). § 87(2)(b) did not move his arms or resist being cuffed in any way. § 87(2)(b) asked why he was being arrested but PO Szczecinski did not answer him and placed him in the back of the RMP. After § 87(2)(b) was secured inside, PO Szczecinski retorted, "You know what? Let's make this a family affair." PO Szczecinski walked over to § 87(2)(b) and cuffed her as well. § 87(2)(b) heard § 87(2)(b) say, "Don't hit me on the knee because I just had surgery on my knees. Let me get in by myself." § 87(2)(b) observed PO Szczecinski attempt to bend one of § 87(2)(b)'s knees to get her inside the RMP. He also observed PO Szczecinski place a hat over § 87(2)(b)'s head and try to push her inside the RMP. He did not observe PO Szczecinski hit § 87(2)(b) with the hat. § 87(2)(b) did not know if PO Szczecinski made any other physical contact with § 87(2)(b). § 87(2)(b) also did not see if § 87(2)(b) resisted being placed in handcuffs or if she moved

her arms in any way. PO Donohue was out of the RMP and may have assisted PO Szczecinski in escorting § 87(2)(b) to the RMP.

As he was in the RMP, § 87(2)(b) dialed 911, telling the operator that he didn't know why he was being arrested. PO Donohue hung the phone up and confiscated it. A second RMP arrived with two black uniformed officers inside, PO3 (African-American male, bald, muscular build, 5'9", stripes on his uniform, identified as Sgt. Small), and PO4 (skinny African-American male, 6'1", identified as PO Slade). § 87(2)(b) told Sgt. Small, "I'm being arrested and I don't know why." PO Small responded, "Forget about what you see on TV. We don't have to read you your rights and we don't have to tell you why you're being arrested. You'll find out when you get to the judge." About ten people, mainly Jewish families stood outside as § 87(2)(b) and § 87(2)(b) were placed under arrest. § 87(2)(b) did not see if anyone was filming the incident.

In the precinct, § 87(2)(b) was in the cell and § 87(2)(b) was outside. § 87(2)(b) found out that he was being arrested § 87(2)(b). § 87(2)(b) did not hear § 87(2)(b) ask for any medical attention. § 87(2)(b) did not sustain any injuries from the incident.

Canvass

The undersigned performed a canvas of Avenue I and East 14/15th Streets in Brooklyn on July 25, 2008, knocking on the front doors and dropping letters at approximately fifteen residences in the vicinity in order to identify any potential witnesses. To date, no one has responded to the CCRB regarding this incident.

Officer Statements

PO Szczecinski UF 61 (Encl. 8a-b)

According to the Complaint Report for this incident, during the conclusion of a car stop, § 87(2)(b) approached the RMP and began banging and cursing at PO Szczecinski and PO Donohue. The officers told § 87(2)(b) to disperse but he refused and was placed under arrest. § 87(2)(b) resisted arrest. A complaint report for § 87(2)(b) was not available.

PO Szczecinski OLBS (Encl. 9a-e)

According to the arrest paperwork prepared for § 87(2)(b) the civilian acted in a disorderly manner at the conclusion of a car stop by screaming, yelling, and banging on the windows of the RMP. PO Szczecinski placed § 87(2)(b) under arrest and she resisted violently, scratching the officers with her fingernails, causing PO Szczecinski to sustain a laceration and substantial pain. According to the arrest paperwork prepared for § 87(2)(b) the civilian approached the RMP and began to bang on the windows and cursing at the officers. § 87(2)(b) was told to disperse and did not do so. PO Szczecinski placed § 87(2)(b) under arrest and § 87(2)(b) exhibited resistance.

PO Szczecinski AIDED Report (Encl. 10a-e)

An Aided Report for PO Szczecinski sustained abrasions to fingers on his right hand as a result of this incident.

PO Michael Szczecinski Memo Book (Encl. 11a-b)

At 4 PM, PO Szczecinski stopped a vehicle on the corner of East 14th Street and Avenue I. At 4:39 PM, two individuals were placed under arrest. At 5 PM, PO Szczecinski visited the ER at the § 87(2)(b) for an injury to his hand.

PO Michael Szczecinski CCRB Statement (Encl. 12a-c)

PO Michael Szczecinski (§ 87(2)(b) -old Caucasian male, § 87(2)(b) , with black hair and blue eyes) was interviewed at the CCRB on June 23, 2008. On May 17, 2008, PO Szczecinski was working the hours of 1030-1905 on an Impact auto assignment. He was working with PO Donohue. He was dressed in uniform and was using § 87(2)(e), § 87(2)(f).

On May 17, 2008, at about 4 PM, PO Szczecinski was conducting a car stop of a van on East 15th Street and Avenue I in Brooklyn. At about the same time, PO Szczecinski observed § 87(2)(b) run a stop sign

and instructed her to stop her vehicle. PO Szczecinski attempted to conduct two car stops at once. He did not recall what the color of § 87(2)(b)'s vehicle was, though he stated that it could have been a Toyota Camry. PO Szczecinski turned on the sirens and gave § 87(2)(b) at least three verbal command to stop with his bullhorn. She did not immediately stop and he had to chase her down the block. PO Szczecinski approached her and asked for her license, registration, and insurance paperwork at least three times. § 87(2)(b) refused to provide this information several times and demanded to know why she was stopped. She displayed an accusatory tone of voice. PO Szczecinski told her that she ran a stop sign. § 87(2)(b) disputed this and screamed out, "This is racist. This is bullshit. This is racial profiling. This is bullshit. I work for § 87(2)(b). I'll have your job." PO Szczecinski interpreted § 87(2)(b)'s comments as a mixture of a threat and an attempt to gain some preferential treatment and not receive a summons and did not issue a verbal response to them. PO Szczecinski did not recall if § 87(2)(b) made any mention of the other vehicle that the officer had just stopped in the vicinity. At this point, PO Szczecinski let the other driver in the van go and focused his attention solely on § 87(2)(b) because she exhibited a hostile demeanor. § 87(2)(b) finally provided her paperwork and PO Szczecinski took it back to the RMP to write a summons. PO Szczecinski instructed § 87(2)(b) to remain in her vehicle. § 87(2)(b) refused and walked down the street. § 87(2)(b) was speaking to someone on her cell phone at this time. Several minutes later, § 87(2)(b) approached PO Szczecinski in the RMP and started yelling, "What's taking so long? I want my ID back." PO Szczecinski was still writing the summons out and needed her ID. He held onto her information for about twenty minutes. § 87(2)(b) left her car in the middle of the intersection. PO Szczecinski got out of the RMP and asked her to move it and she replied, "Go fuck yourself. If it's a good enough place for you to stop me, it's good enough for me to sit there and do whatever the hell I need to do." § 87(2)(b) continued using her cell phone. PO Szczecinski attempted to maintain a professional demeanor with § 87(2)(b) but admitted that he raised his voice towards her to maintain control of the situation. PO Szczecinski denied calling § 87(2)(b) an asshole or a fucking idiot. He denied using any profane or inappropriate language with her. Approximately six to ten people stood on the block some distance away. PO Szczecinski did not remember if any of the observers attempted to make any contact with either § 87(2)(b) or § 87(2)(b). PO Szczecinski remembered seeing a black male who appeared to be in his thirties holding a camera.

PO Szczecinski did not hear any other officers make any discourteous comments towards § 87(2)(b) or specifically call her a "fucking idiot." PO Szczecinski did not recall threatening to dig § 87(2)(b) out of the car or use any other physical force against her at any point. After writing § 87(2)(b) a traffic summons, he decided to write her a second summons § 87(2)(b)

§ 87(2)(b)

PO Szczecinski went back to the RMP and a dark SUV pulled up directly behind the RMP about twenty five minutes later. PO Szczecinski did not know who the driver of this vehicle was but later found out that that this was § 87(2)(b), § 87(2)(b)'s husband. § 87(2)(b) and § 87(2)(b) both surrounded the RMP and started banging on PO Szczecinski's door and window, which was rolled all the way up. PO Szczecinski told § 87(2)(b) "Sir, I don't know who you are and what your business is here. Please move to the side." § 87(2)(b) responded, "I don't give a fuck. I wanna talk to you. Roll down the window." § 87(2)(b) told PO Szczecinski to give § 87(2)(b)'s identification back to her because the officer had no right to have it. § 87(2)(b) also said, "What are you gonna do? Fifty shots me like Sean Bell?" PO Szczecinski directed § 87(2)(b) to get back to her vehicle. PO Szczecinski and PO Donohue got out of the RMP and placed § 87(2)(b) under arrest and placed him in the back of the RMP. PO Szczecinski described § 87(2)(b) as fairly calm during his apprehension. PO Szczecinski and PO Donohue then attempted to place § 87(2)(b) under arrest. § 87(2)(b) fought the officers and refused to be placed in handcuffs, flailing both arms and pushing the officers away. As soon as PO Szczecinski succeeded in grabbing her cell phone from one of her hands, § 87(2)(b) cut PO Szczecinski's right hand with her fingernails and "sliced it open." PO Szczecinski made contact with § 87(2)(b)'s arms and shoulders and placed her in the RMP. PO Szczecinski did not make any physical contact with § 87(2)(b)'s feet or ankles and specifically denied kicking her legs. PO Szczecinski also denied making any contact with § 87(2)(b)'s head with either a hat or any other object. At first § 87(2)(b) refused to get her feet into the RMP but complied several seconds later. Sgt. Small and PO Slade arrived on the scene because § 87(2)(b) had called 911 asking if PO Szczecinski was following proper police procedure.

At no point did § 87(2)(b) tell PO Szczecinski that she recently had a surgery. § 87(2)(b) never informed PO Szczecinski that she was experiencing pain to her legs or knees.

PO Szczecinski and PO Donohue transported § 87(2)(b) and § 87(2)(b) to the precinct stationhouse in the same RMP. In the precinct, PO Szczecinski spoke to § 87(2)(b) only regards to her relevant pedigree information. At no point did § 87(2)(b) ask the officer for any medical assistance for any pain.

PO Szczecinski was transported to § 87(2)(b) and filled out a Line of Duty form for his injury.
PO Christopher Donohue Memo Book (Encl. 13a-b)

At 4 PM on May 17, 2008, PO Donohue participated in a car stop on the corner of East 14th Street and Avenue I. At 4:39 PM, two individuals were placed under arrest.

PO Christopher Donohue CCRB Witness Statement (Encl. 14a-c)

PO Christopher Donohue (§ 87(2)(b)-old Caucasian male, § 87(2)(b), with brown hair and hazel eyes) was interviewed at the CCRB on June 24, 2008. On May 17, 2008, PO Donohue was working the hours of 1030-1905. PO Donohue was working with PO Szczecinski. PO Donohue was dressed in uniform and was using § 87(2)(e), § 87(2)(f). PO Donohue was performing an Impact assignment. PO Donohue was the operator.

On May 17, 2008, at about 4 PM, PO Donohue and PO Szczecinski attempted to pull over a vehicle driven by § 87(2)(b). The officers were already in the process of stopping another vehicle for a traffic violation when they observed § 87(2)(b). § 87(2)(b) was headed northbound towards East 15th Street and made a left on Avenue I in Brooklyn. The officers observed § 87(2)(b) ignore a stop sign and attempted to pull her over. § 87(2)(b) did not immediately pull over but made a right turn on East 14th Street in order to let some people cross the street. § 87(2)(b) stopped her car diagonally across the street, approximately four hundred yards away. PO Donohue and PO Szczecinski approached the vehicle and asked for § 87(2)(b)'s license, registration and insurance. § 87(2)(b) provided this paperwork and the officers went back to the RMP and PO Szczecinski proceeded to write her a summons.

§ 87(2)(b) observed this, exited her vehicle, approached the officers, called them racists, and recorded their names and shield numbers. § 87(2)(b) walked down the block and was not in her vehicle when the officers walked over to give her the summons. PO Donohue saw that § 87(2)(b) was talking to someone on her cell phone at this point. § 87(2)(b) walked back to retrieve her documents. When she got her summons, she said, "This is why you cops get shot and this is why you die." PO Donohue did not remember if § 87(2)(b) made any other rude or discourteous comments. The officers went back to their RMP. § 87(2)(b) remained in her vehicle and continued to block traffic, refusing to move it to let other cars pass. The officers told her, "Ma'am, you have to move your car." § 87(2)(b) ignored them. When the officers repeated this instruction, § 87(2)(b) responded, "I was here for ten minutes while you were writing the ticket. What does it matter if I'm blocking it now?" The officers warned her to move her car a third time and she again refused. PO Szczecinski told § 87(2)(b) that she was disobeying a lawful order and § 87(2)(b) repeated, "I was here for ten minutes. What does it matter?" PO Szczecinski again asked if she was disobeying a lawful order. § 87(2)(b) did not offer a response to this but provided her ID and said that she works for the government. PO Szczecinski looked at the ID and requested § 87(2)(b)'s license back. § 87(2)(b) refused to give her license again and said that she worked for the government. She also told the officers that she had just called 911. She did not give the officers any indication as to why she called 911. PO Szczecinski told PO Donohue that they had enough information to write a summons § 87(2)(b) and they went back to the RMP. PO Donohue did not recall if PO Szczecinski made any comment regarding § 87(2)(b)'s employment status § 87(2)(b).

As the officers were sitting in the RMP, § 87(2)(b) drove up in a dark Mercedes or BMW and stopped directly behind them. § 87(2)(b) walked over to § 87(2)(b)'s vehicle and began speaking with her. Several minutes later, § 87(2)(b) walked back towards to the RMP and started yelling at PO Szczecinski at the passenger side. § 87(2)(b) started screaming that she wanted her work ID back. § 87(2)(b) was speaking to someone on her cell phone at this time. § 87(2)(b) stood next to his vehicle and calmly said, "Sean Bell fifty shots, right? Fifty shots." PO Donohue did not recall § 87(2)(b) say anything about § 87(2)(b)'s ID. § 87(2)(b) continued to yell at PO Szczecinski and stuck her head in the passenger side window. PO Szczecinski rolled his window up. § 87(2)(b) started banging on PO

Szczecinski's window and PO Szczecinski ignored him. § 87(2)(b) then walked over to the driver's side and proceeded to bang on PO Donohue's window. PO Donohue also ignored § 87(2)(b) and rolled his window up. § 87(2)(b) subsequently walked back to PO Szczecinski's window and banged on it. At this point, PO Donohue and PO Szczecinski got out of the RMP and placed § 87(2)(b) under arrest for obstructing governmental administration. § 87(2)(b) did not provide any resistance while being cuffed. PO Szczecinski cuffed § 87(2)(b). The officers then proceeded to arrest § 87(2)(b) who stood at the sidewalk at this point. § 87(2)(b) refused to be cuffed, flinging her arms around, and cut PO Szczecinski's hand with her fingernails, causing PO Szczecinski to sustain a deep laceration and bleeding. PO Donohue had to assist PO Szczecinski in cuffing § 87(2)(b). § 87(2)(b) refused to walk towards the RMP. The officers had to force her to get inside the RMP by grabbing both of her arms. At no point did PO Szczecinski make any contact with § 87(2)(b)'s head or hit her head with a police hat or any other object.

Sgt. Small and PO Slade arrived on the scene to verify the arrests after § 87(2)(b) and § 87(2)(b) were both restrained and sitting in the RMP. Sgt. Small said something to § 87(2)(b) as she was inside the RMP. PO Donohue could not hear what the sergeant said.

A crowd of about six to ten people formed on the street. PO Donohue did not remember if any of the observers had a camera.

PO Donohue did not hear any officers use any profane language with § 87(2)(b). PO Donohue did not recall any officers threaten § 87(2)(b) with the use of force and specifically denied hearing anyone tell her that they would "dig her out" of the car. PO Donohue did not recall § 87(2)(b) state that she had surgery or that she was experiencing pain in her legs. PO Donohue did not see any officer kick or punch § 87(2)(b) on her knees or legs.

PO Donohue transported § 87(2)(b) to the stationhouse with PO Szczecinski. PO Donohue did not hear § 87(2)(b) complain of any pain or ask for any medical attention.

Sgt. Edmund Small CCRB Witness Statement (Encl. 19a-b)

Sgt. Edmund Small § 87(2)(b)-old African-American male, § 87(2)(b), bald, with brown eyes) was interviewed at the CCRB on July 18, 2008. On May 17, 2008, Sgt. Small was working 4 – 12 PM. He was working as a patrol supervisor and was partnered with PO Slade, who was the operator. Sgt. Small was dressed in uniform and was using an RMP. He did not bring his memo book to the interview.

On May 17, 2008, at about 4:30 PM, Sgt. Small received a message from central command that a female made a 911 call regarding officers abusing their authority. Sgt. Small also received a call regarding several individuals being placed under arrest on Avenue I and East 15th Street in Brooklyn. Sgt. Small responded to the location to verify the arrests. He observed two individuals, § 87(2)(b) and § 87(2)(b) cuffed and sitting in the back of PO Szczecinski's RMP. Sgt. Small asked PO Szczecinski what had happened. PO Szczecinski told him that § 87(2)(b) ran a stop sign and that he attempted to pull her over. PO Szczecinski stood outside his RMP with PO Donohue. PO Szczecinski explained that at first, § 87(2)(b) did not want to produce her driver's license. Once PO Szczecinski received her license, he returned to the RMP, at which point § 87(2)(b) exited her vehicle, banged on the officer's window, and asked him why she was getting a summons while another motorist who was pulled over earlier did not receive one. PO Szczecinski directed § 87(2)(b) to get back to her vehicle several times and § 87(2)(b) refused to listen. PO Szczecinski told Sgt. Small that several minutes later, § 87(2)(b) drove up to the location in a BMW X5, blocked the RMP on the road, got out, and proceeded to talk to PO Szczecinski. PO Szczecinski reiterated to Sgt. Small that he instructed § 87(2)(b) to get back in his car and that he would speak to him after he was done with § 87(2)(b). Both individuals continued to stand outside and refused to get back to their orders. Sgt. Small confirmed PO Szczecinski's decision to arrest § 87(2)(b) and § 87(2)(b) and PO Szczecinski transported the civilians to the stationhouse. Sgt. Small saw a cut on PO Szczecinski's finger on the scene. It appeared to be deep and was bleeding. PO Szczecinski told him that he sustained it when § 87(2)(b) resisted being cuffed and cut him. Sgt. Small did not see any marks or bruises on PO Donohue's person.

Sgt. Small briefly spoke to § 87(2)(b) on the scene. § 87(2)(b) told him that she did not understand why PO Szczecinski was picking on her by issuing her a summons even though he did not issue a summons to the other motorist. § 87(2)(b) also did not understand why she was being placed under arrest. Sgt. Small told § 87(2)(b) that there is a right way and wrong way to protest the summons and that everyone has their day in court. § 87(2)(b) was still irate about the summons and Sgt. Small told her that he was sorry. § 87(2)(b) did not give Sgt. Small any indication that she was experiencing pain to any part of her body, though she told him that it was “tight” in the back of the RMP. § 87(2)(b) did not tell Sgt. Small that PO Szczecinski had struck her or hit her legs or head at any point during the conversation and did not make any mention of having had a recent surgery. Sgt. Small did not observe any cuts or scrapes on § 87(2)(b)s person.

In the stationhouse, § 87(2)(b) and § 87(2)(b) declined any medical treatment during their processing. Sgt. Small asked § 87(2)(b) for her ID in the precinct. She provided her work ID. Sgt. Small did not recall if § 87(2)(b) made any effort to get preferential treatment because she was a government employee and did not recall if PO Szczecinski made any mention of her employment status.

Sgt. Small did not hear any officers use any profanity or threaten § 87(2)(b) with the use of force at any point.

PO Howard Slade CCRB Witness Statement (Encl. 16a-b)

PO Howard Slade (§ 87(2)(b)-old African-American male, § 87(2)(b), with black hair and brown eyes) was interviewed at the CCRB on July 18, 2008. On May 17, 2008, PO Slade was working the hours of 1500-2335. He was the operator for Sgt. Small. He was dressed in uniform and was using § 87(2)(e), § 87(2)(f). He did not have any memo book entries regarding this incident.

On May 17, 2008, at about 4:30 PM, PO Slade and Sgt. Small arrived at Avenue I and East 15th Street in Brooklyn. PO Slade observed two individuals, § 87(2)(b) and § 87(2)(b) sitting in the back of an RMP. PO Slade did not remember if any of the vehicles were blocking traffic or what types / models the vehicles were. PO Slade did not hear what § 87(2)(b) and § 87(2)(b) were saying to the officers. He observed Sgt. Small speaking to the civilians. PO Slade did not get out of the RMP at any point on the scene. PO Slade did not see any officers make any physical contact with the civilians on the scene. PO Slade did not hear any officers use any profane language or threaten any of the civilians with the use of force.

In the precinct, § 87(2)(b) was yelling and making a lot of noise. PO Szczecinski tried to speak with her to get her pedigree information. PO Slade spoke to § 87(2)(b) in the stationhouse and tried to calm her down. § 87(2)(b) did not make any sense as she was screaming and PO Slade could not understand what she said. § 87(2)(b) did not complain of any pain at any point in the precinct and did not ask PO Slade for medical attention. § 87(2)(b) continued yelling and PO Szczecinski left the room. PO Slade scratches and cuts on the arms of PO Szczecinski and PO Donohue in the precinct.

Sgt. Walter Roberts CCRB Witness Statement (Encl. 18a-b)

Sgt. Walter Roberts (§ 87(2)(b)-old African-American male, § 87(2)(b), bald, with brown eyes) was interviewed at the CCRB on June 25, 2008. On May 17, 2008, Sgt. Roberts was working the hours of 1020-1917. He was working in the desk of the 70th Precinct stationhouse. He did not have any pertinent memo book entries for this incident.

On the afternoon of May 17, 2008, Sgt. Roberts was in the precinct stationhouse when PO Szczecinski arrived and told him that he had an arrest and that he was injured and that the sergeant needed to fill out a Line of Duty report for him. PO Szczecinski told the sergeant that § 87(2)(b) resisted arrest and scratched his hand with her fingernails. Sgt. Roberts came upstairs and saw § 87(2)(b) and § 87(2)(b). Sgt. Roberts separated § 87(2)(b) and asked her what happened. § 87(2)(b) was calm and apologetic with Sgt. Roberts. Sgt. Roberts told her that he would release her vehicle to her instead of vouchering it. § 87(2)(b) told her that Sgt. Roberts did not see what happened to § 87(2)(b) on the scene where she was arrested. § 87(2)(b) told Sgt. Roberts that if she had to do it over, she would act differently and would not resist the

told the operator that § 87(2)(b) was being assaulted. § 87(2)(b) said that he was calling from the back of the police car.

Subject Officer CCRB History (Encl. 1a)

PO Szczecinski has never been disciplined as a result of a CCRB complaint.

Civilian CCRB History (Encl. 2a)

This is the first CCRB complaint for § 87(2)(b) and § 87(2)(b)

Civilian Conviction History (Encl. 27a-c and 28a-d)

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) identified PO Szczecinski by name and shield number during her in-person interview. PO Szczecinski confirmed the involvement with § 87(2)(b) and § 87(2)(b) § 87(2)(g)

Undisputed Facts

§ 87(2)(g)

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g) § 87(2)(b) alleged that during the course of the car stop she asked PO Szczecinski why she was disputing the issuance of her traffic summons with PO Szczecinski, at which point PO Szczecinski stated, "Are you a fucking idiot? If someone's pulling you over that means they saw you." § 87(2)(b) also testified that when she was on the phone speaking to a 911 operator, PO Szczecinski told her, "I'm gonna dig you out of the car if you don't come out." The 911 communication CD obtained by the CCRB, while yielding a limited record of the verbal interaction between § 87(2)(b) and PO Szczecinski, did not capture the latter comment. While § 87(2)(b) stated that she remained in her car during the initial stop, both PO Szczecinski and PO Donohue testified that she got out, stood in the middle of the road, and refused to get back in her vehicle as she was using her cell phone. In his CCRB interview, PO Szczecinski denied using any profanity with § 87(2)(b) at any point and denied threatening her with force. § 87(2)(g)

However, PO Szczecinski testified that § 87(2)(b) made several profane comments during the stop, while PO Donohue did not recall if she cursed at any point aside from saying, "That's why you cops get shot." PO Szczecinski testified that his primary reason for intending to issue her a § 87(2)(b) summons was her use of profanity while PO Donohue stated that she was being disorderly by continually refusing to move her vehicle. § 87(2)(g)

§ 87(2)(b) additionally stated that as she was being placed under arrest, PO Szczecinski pushed her and hit her upper thigh and knee with his hand several times in order to rush her to the RMP, even though she had informed him that she recently undergone a surgery on her legs. § 87(2)(b) also said that once she reached the police car, PO Szczecinski took off his hat and proceeded to pound her on the head with it three or four times in an attempt to get her inside the RMP. § 87(2)(b) who was already under arrest and sitting in the RMP at this point, stated that PO Szczecinski attempted to bend one of § 87(2)(b)'s knees to get her inside the car. He also stated that he observed PO Szczecinski place a hat over § 87(2)(b)'s head and try to push her inside. However, he did not see PO Szczecinski hit § 87(2)(b) with the hat.

According to the record of § 87(2)(b)'s 911 call, § 87(2)(b) can be overheard yelling out, "Don't push me. Fuck you! I can get in by myself! Get your hands off me. I will get in," § 87(2)(g)

§ 87(2)(b) When visiting the ER at § 87(2)(b), § 87(2)(b) indicated that she felt pain to her legs and that the pain was caused by being cuffed to a chair in the precinct, a detail that she did not make at any point in her CCRB statement. What is more, according to her Pre-Arrest Screening Form, completed on the date of her arrest, § 87(2)(b) did not make any mention of any pain or injury. Additionally, the command log entry for her arrest notes that § 87(2)(b)'s condition was apparently normal when she was brought to the precinct. § 87(2)(g)

§ 87(2)(b) According to PO Szczecinski, § 87(2)(b) fought the officers and refused to be placed in handcuffs, flailing both arms and pushing him and PO Donohue away. § 87(2)(b) cut PO Szczecinski's right hand with her fingernails and caused him to sustain a laceration, an injury that is documented in the officer's official AIDED report. PO Szczecinski stated that he made contact with § 87(2)(b)'s arms and shoulders while placing her in the RMP. PO Szczecinski testified that he did not make any physical contact with § 87(2)(b)'s feet or ankles and he specifically denied kicking her legs. PO Szczecinski also denied making any contact with § 87(2)(b)'s head with either a hat or any other object. PO Szczecinski stated that § 87(2)(b) refused to get her feet into the RMP but complied several seconds later. PO Donohue § 87(2)(g) confirmed that § 87(2)(b) refused to walk towards the RMP and stated that both officers had to force her to get inside the car by grabbing both of her arms. PO Donohue additionally confirmed that PO Szczecinski did not make any contact with § 87(2)(b)'s head or hit her head with a police hat or any other object.

§ 87(2)(g)

§ 87(2)(b) further stated that PO Szczecinski failed to obtain any medical attention in the precinct stationhouse when she told him that she felt pain to her knees. According to § 87(2)(b) the officer instructed her to wait until she was brought to Central Booking. PO Szczecinski, for his part, denied that § 87(2)(b) asked for any medical attention. PO Donohue, Sgt. Small, PO Slade, and Sgt. Roberts, who were all in the stationhouse when § 87(2)(b) was processed and recalled interacting with her, also stated that she did not ask for any medical treatment at any point. § 87(2)(b) was brought to the stationhouse at the same time as § 87(2)(b) and likewise stated that he did not hear her request any medical attention or complain of any pain in the precinct. § 87(2)(g)

§ 87(2)(g)

Allegation Not Pleaded

§ 87(2)(g)

Allegation A: PO Michael Szczecinski spoke rudely to § 87(2)(b)

§ 87(2)(g)

Allegation B: PO Michael Szczecinski threatened § 87(2)(b) with the use of force.

Allegation C: PO Michael Szczecinski used physical force against § 87(2)(b)

§ 87(2)(b) alleged that when she was inside her car, PO Szczecinski threatened to “dig” her out of the vehicle. In the Administrative Law Judges case of *PD v. Briscoe*, a traffic officer was found guilty of misconduct for telling a perpetrator “I wish I had five minutes alone with you” inside a precinct stationhouse (Encl. Legal 1a-z). The ALJ ruled that such a “gratuitous comment” served “no other purpose than to intimidate.” § 87(2)(g)

Allegation D: PO Michael Szczecinski did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) claimed that she told PO Szczecinski that she felt pain in her legs and needed to go to a hospital and that the officer told her that she would need to wait until she was in Central Booking. PO Szczecinski denied failing to obtain any treatment for § 87(2)(b) and stated that she did not complain of pain or injury to him at any point. § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: